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JUDGMENT SHEET
LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

W.P No.2355/2025

Muhammad Imran **Versus** Government of Punjab
etc.

J U D G M E N T

Date of Hearing:	17.04.2025
Petitioner by:	Mr. M. Sohail Iqbal Bhatti, Advocate
Respondents by:	Malik Muhammad Bakhsh Khakhi, Assistant Advocate General alongwith Saad Ali, Law Officer, PPSC and M. Ijaz, ADF, Multan.

Anwaar Hussain, J. The Punjab Public Service Commission (“**the Commission**”) issued an advertisement dated 09.09.2022 for recruitment against 22 posts of Food Grains Supervisor (BS-09). The petitioner applied and, after due process, was placed at Serial No. 2 on the waiting list issued on 04.09.2023. Subsequently, two selected candidates, namely, Muhammad Waseem Ashraf and Dilshad Ahmad did not join service, resulting in two vacant posts on 18.10.2023 and 19.03.2024 respectively. Despite the petitioner’s timely application for recommendation against the resultant vacancies, and the fact that the Deputy Director Food, Multan requested filling of two vacant posts, the Administrative Department acted in a dilatory manner and, by letter dated 03.09.2024 requested the Commission to recommend only one candidate. Later on, when the Administrative Department sought recommendation for the petitioner as well, the Commission declined, citing expiry of the waiting list and the need for fresh recruitment. Hence, present constitutional petition.

2. The discretion exercised by the Administrative Department in soliciting only one candidate despite the admitted existence of

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two resultant vacancies was arbitrary and unjustified. No lawful explanation was offered as to why the Administrative Department failed to seek recommendation for the petitioner earlier, particularly when the vacancy had clearly arisen during the validity of the waiting list. This inaction not only frustrated the petitioner's legitimate expectation but also defeated the very purpose of maintaining a waiting list. This Court, through reported judgment, in case bearing W.P No.14059/2020 titled Muhammad Ali Shah v. Inspector General of Police etc., has already examined an analogous situation in the context of the Police Department and held as under:

“7. in cases where an eligible candidate from the waiting list makes a timely application for appointment against the resultant vacancy, the department concerned is under a legal and administrative obligation to deal with that request expeditiously. It cannot leave such an application pending for an indefinite period or brush it aside simply on the ground that the department is not under an obligation to recommend the name of such a candidate. At the same time, it is acknowledged that during the currency of a waiting list, new vacancies may arise independently—such as due to superannuation, promotion to higher posts, or administrative sanction of additional posts of the same cadre/grade. Where the number of such new vacancies is significant, the department may reasonably decide that, instead of appointing only one or two candidates from the waiting list (e.g., against non-joined posts), it would be more appropriate to consolidate all such vacancies into a new recruitment cycle, even before the expiry of the validity period of the waiting list. However, even in such cases, the department must not act arbitrarily. If a candidate from the waiting list has made an application pointing to a specific,

available vacancy, the department must pass a reasoned and timely order—preferably within one month from the date of receipt of an application from the candidate from waiting list. This enables the candidate to exercise an informed choice: whether to accept the rejection or to challenge the same or to prepare for the next recruitment process. The use of the waiting list, as held in the case of Shabana Akhtar supra, promotes economic efficiency and continuity of service, and its utility should not be defeated by inertia on the part of the administrative department concerned. An administrative department—the Police Department in the present case, cannot be allowed to ignore a vacancy, refuse to recommend a candidate from the waiting list without giving any reasons, and also fail to start a fresh recruitment process. If the department delays the matter in this manner and let the validity period expire, it cannot later take shelter behind the lapse of time. Such conduct amounts to unfair administrative practice and is legally unacceptable.”

The case of the petitioner is even on better footings inasmuch as only the period of waiting list was lapsed due to inaction and improper exercise of power by the Administrative Department and no fresh recruitment has been carried out so far.

3. It is imperative to observe that repeated instances of similar administrative lapses necessitate institutional correction. The Government of Punjab, in active consultation with the Commission, shall evolve a clear, transparent, and time-bound mechanism to ensure that all resultant vacancies arising during the currency of a waiting list—whether due to resignation, non-joining, or otherwise—are immediately notified, assessed, and filled from the waiting list, where applicable. The practice of deferring such appointments under the pretext of anticipating future vacancies cannot be sustained. A

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structured mechanism, with defined timelines and coordination between the departments of the Government and the Commission, is essential to uphold transparency, efficiency, and fairness in public recruitment. Waiting for the vacancies to accumulate, on account of superannuation, promotion, or sanctioning of additional posts, while ignoring existing vacancies, arising from the recently concluded recruitment process in respect of which waiting list is valid, risks denying eligible candidates their rightful chance of appointment. Worse, it may render them (eligible candidate in waiting list) overage for future recruitments. Such an approach undermines the utility of waiting list and frustrates the legitimate expectations of candidates who have already undergone the rigors of the competitive selection. A structured, consultative process between Government and the Commission must ensure that every arising vacancy is dealt with promptly, and the rights of candidates are not defeated by the administrative indecision.

4. In light of the above, the petition is **allowed**. The Administrative Department is directed to forthwith process the petitioner's appointment, notwithstanding the expiry of the waiting list period, which lapsed solely due to the inaction and delay attributable to the respondents. Office is also directed to transmit a copy of this judgment to the Chief Secretary, Punjab as also Chairman of the Commission, for further necessary action in the light of observations of this Court in respect of filling of vacancies from the waiting list.

(ANWAAR HUSSAIN)
JUDGE

Approved for reporting

Judge